

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUOR059268: FRANK ROBERT HERRERA vs ELENA Y. MUNGUIA

07/07/2026 in Department 43

Motion to Appoint Partition Referee (CCP 873.010 ET SEQ)

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Appoint Partition Referee (CCP §§ 873.010 et seq.)

Tentative Ruling: Plaintiff's Motion to Appoint Partition Referee is DENIED. The motion is premature. Plaintiff's right to partition has not been determined. **"No partition can be had until the interests of all the parties have been ascertained and settled by a trial."** (*Withington v. Collins* (1943) 60 Cal.App.2d 110, 113; Code Civ. Proc., § 759.) If there is no stipulation to the partition, a trial or hearing must be held to verify the parties' ownership interests and confirm that the plaintiff has the legal right to force a partition. Only after the Court has ordered a partition may a referee be appointed to execute the order.

Moving party is ordered to serve notice of the Court's ruling.